

Tentative Ruling

Imidacloprid Cases
Superior Court Case No. 22JCCP05241

June 9, 2026 (Dept. 502)

By M.C. Watte Ranches for Attorney's Fees and Costs of Proof
Pursuant to Code of Civil Procedure section 2033.420

Tentative Ruling:

To take the motion off calendar. Given that there is an appeal by Nutrien Ag Solutions pending that may impact entitlement to attorneys' fees, and in the interests of judicial economy and to conserve court resources, the Court defers ruling on the issue. Once the remittitur is issued, M.C. Watte Ranches may contact the court to have the motion returned to the court's calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/04/26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: **Martinez v. Denison**
Superior Court Case No. 25CECG04869

Hearing Date: June 9, 2026 (Dept. 502)

Motion: Demurrer to Complaint

Tentative Ruling:

To sustain, with plaintiffs granted 10 days' leave to file a first amended complaint. (Code Civ. Proc., § 430.10, subd. (e), (f).) The time in which the complaint may be amended will run from service of the order by the clerk.

Explanation:

This is a personal injury action in which plaintiffs allege that they were injured in an auto accident caused by Andrew Denison, a City of Fresno employee acting in the course and scope of his duties when he caused the accident.

The special demurrer for uncertainty is sustained because the Complaint's sole cause of action for negligence improperly combines multiple distinct causes of action into a single cause of action. Plaintiffs allege negligent operation of a motor vehicle against the City on a theory of vicarious liability, while also asserting claims for negligent supervision, training, and retention, and negligent entrustment. (See Complaint ¶¶ 26, 30, 34.) These should be separated out into separate causes of action. (See *Haddad v. McDowell* (1931) 213 Cal. 690, 692 [proper to sustain demurrer where complaint attempts to combine two or more causes of action rather than pleading them separately], disapproved on other grounds in *Wennerholm v. Stanford University School of Medicine* (1942) 20 Cal.2d 713, 719; *Campbell v. Rayburn* (1954) 129 Cal.App.2d 232, 235.)

The court also notes that the Complaint fails to identify a statutory basis for the claims of negligent supervision, training, and retention and negligent entrustment (even if they were pled separately). "Under the Government Claims Act, all government tort liability must be based on statute. (Gov. Code, § 810 et seq.)" (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107.) The Complaint identifies Government Code sections 815.2 and 820 as the statutory bases for the claims. These provisions respectively provide that public employees are liable for their acts and omissions to the same extent as private persons, and that a public entity employer may be held vicariously liable for those acts and omissions.

Under the Tort Claims Act, all governmental tort liability must be based on statute; therefore, the general rule is that statutory causes of action must be pled with particularity. (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.) In other words, the limited and statutory nature of governmental liability mandates that claims against public entities be pled with particularity. (*Brenner v. City of El Cajon* (2003) 112 Cal.App.4th 434, 439; *Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 809; *Lopez, supra*, 40 Cal.3d at p. 795.)

Plaintiffs fail to identify a statutory basis for the claims of negligent supervision, training, and retention and negligent entrustment. The Complaint identifies Government Code sections 815.2 and 820 as the statutory bases for the claims. These provisions respectively provide that public employees are liable for their acts and omissions to the same extent as private persons, and that a public entity employer may be held vicariously liable for those acts and omissions.

The opposition relies on the “special relationship” doctrine to claim that there is a special relationship between the City and other motorists. However, “... there can be no individual liability to third parties for negligent hiring, retention or supervision of a fellow employee, and hence no vicarious liability under [Government Code] section 815.2” absent a special relationship (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 877.) Plaintiffs identify no authority holding that a special relationship exists in the circumstances in which plaintiffs were injured. The demurrer should be sustained with leave to amend. Plaintiffs need to specifically identify the statutory basis for each separate cause of action pled in the amended complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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